

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1671

By: Cantrell

AS INTRODUCED

An Act relating to schools; requiring proof of citizenship or legal immigration status to be provided during school enrollment; stating documentation that can be used for proof; mandating district recording and reporting of certain data; clarifying construction of act; prohibiting the recording of certain data; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-162 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. A parent or guardian, when enrolling his or her child as a student in an Oklahoma public or charter school, shall provide proof of United States citizenship or legal immigration status of the child through presentation of one of the following:

1. His or her United States passport;
2. His or her Permanent Resident Card;
3. His or her Oklahoma driver license;

1 4. His or her Social Security card; or

2 5. His or her birth certificate issued by one of the fifty
3 United States, Washington D.C., or one of the five inhabited United
4 States territories: American Samoa, Guam, the Northern Mariana
5 Islands, Puerto Rico, or the U.S. Virgin Islands.

6 B. Each school district shall record the number of students
7 enrolled within the district whose parent(s) or guardian(s) could
8 not provide proof of citizenship or legal immigration status as
9 outlined in subsection A of this section due to the lack of
10 citizenship or legal immigration status of the student and shall
11 submit this information to the State Department of Education through
12 the Oklahoma student identification system established by subsection
13 E of Section 18-200.1 of Title 70 of the Oklahoma Statutes.

14 C. Nothing in this act shall be construed to inhibit any child
15 from receiving the education he or she is entitled to receive under
16 United States law or Oklahoma law.

17 D. Nothing in this act shall be construed to allow the
18 recording of any student data, except for the lack of documentation
19 outlined in subsection B of this section, or recording of an
20 individual student's citizenship status or legal immigration status.

21 SECTION 2. This act shall become effective July 1, 2025.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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